

FDA DICE Call — Transcript

Date: September 1, 2026 **Participants:** Isak Gutierrez, Joelle Ater, FDA Division of Industry and Consumer Education (DICE) agent **Duration:** ~25 minutes

FDA Agent: Industry Education, how may I help you?

Isak: Hello, I have a few questions about walkers and devices that are similar to walkers and lifts. I'm trying to figure out a classification for a product that we're building.

FDA Agent: What exactly is the question?

Isak: If we have a wheeled frame with a powered lift column that raises a person from seated to standing, and it holds them with thigh support and arm support and supports their weight while they walk — it operates as a lift as well as a walker. I found an ITJ and an FSA classification and I'm trying to figure out which one it falls under.

FDA Agent: That is the responsibility of the device manufacturer. Let me take a look at the product codes.

Joelle: I'm also on the call. I just wanted to see if it was also determined by how it is marketed, not just by what it does.

FDA Agent: Yes, intended use. It's marketed for a particular purpose.

Joelle: We were wondering if there was a way of marketing it as a walker and a lift, or if you have to have it classified as either or.

FDA Agent: I think you can market it as both. Additionally, in one of our guidances, it explains what they call subsequent product codes — where something has more than one function, it also may have more than one product code. It would be listed under a primary product code. Your company would have to figure that one out.

Isak: How do we go about figuring that out? We were wondering if there were regulatory things we would need to follow to be compliant. It seems to be more stringent regulation around the lift part, so we were wondering if we needed to go down that route, or if we just avoid certain language if we're just marketing it as a walker.

FDA Agent: Well, if it has the lift capability, the agency would still consider it to be a lift.

Isak: So you're saying that if it lifts at all, then it needs to fall under that classification?

FDA Agent: Yeah, they would probably consider it to be a lift if it does the lifting.

Isak: What if the primary function is for therapeutic use and for walking, and the lift is just a function to get the user to operate it — does that affect it at all?

FDA Agent: Lists as well.

Isak: And if it's electrical versus mechanical, does that make a difference?

FDA Agent: It could. You might want to check the product codes and see if there's a product code for a powered lift. They actually have one called FNG, which is "Lift, patient, AC-powered." I found that by putting in "lift, patient" and it brought up FNG and FSA.

Guidance Documents Referenced

FDA Agent: There is a guidance document on this. If you go to the main medical devices page, underneath the three pictures with text, there are four buttons. The one on the far right says “Search for FDA Guidance Documents.”

1. **513(g) Process Guidance:** Search for “513(g)” — the first result: *“FDA and Industry Procedures for Section 513(g) Requests for Information Under the Federal Food, Drug, and Cosmetic Act — Guidance for Industry and FDA.”*
2. **Product Code Guidance:** Search for “product code” — the second result: *“Medical Device Classification Product Codes — Guidance for Industry and FDA Staff.”* This one explains secondary product codes for devices with more than one function.
3. **Device Advice Section:** On the main medical devices page, third button — “Device Advice.” Left-hand menu → “Overview of Device Regulation” → bottom item “Regulatory Controls.” General controls apply to all devices. Special controls apply to Class II devices in addition to general controls.

513(g) Process

FDA Agent: There is a process called 513(g). The FDA gives a suggested classification and governing regulation for your device.

- **FY2026 standard fee:** \$7,820
- **FY2027 standard fee:** \$8,596
- **FY2027 small business fee:** \$4,298
- One-time fee per submission (not yearly)

Small business request timeline: - Submit small business qualification request now - Determinations sent out in October (fiscal year starts October) - Deadline for small business requests: approximately July 31, 2027 - First in, first out review basis

Isak: Is this required?

FDA Agent: No, it’s just for convenience — to have the FDA give a suggested classification.

Risk of Wrong Classification

Isak: What are the ramifications if we accidentally picked the wrong classification?

FDA Agent: If you pick a product code that doesn’t require any sort of pre-market authorization, and it turns out to be one that does, the agency could make you stop selling the device until you’ve submitted the pre-market submission and the FDA has authorized it for marketing. So it could mean a hiatus between when you’re selling it and when you could sell it again.

Isak: Is the lift category one that requires pre-market authorization?

FDA Agent: It depends which product code. The electric one — FNG, “Lift, patient, AC-powered” — is Class II, but it says 510(k) exempt. So you don’t have to have pre-market authorization. You can find the governing regulation and submission type in the product classification database for that particular product code.

Post-Call Discussion (Isak + Joelle)

Joelle: I followed it, I got some links. It’s just another little deep dive, but I think we’re closer. Good to know and hear from the horse’s mouth.

Isak: It sounds like there’s no pre-market authorization required. That was my concern. But what are the other regulations around it?

Joelle: That’s a really good question.

Isak: I’m guessing Thomas is going to want to go down the heavier classification route, because if we got stopped later — “hey, this is the wrong classification” — that’s much worse. Because of how similar these are to other walkers on both ends, and from what I was hearing from her, I think we’re going to be good under one of those classifications. The heavier the better.

Joelle: Yeah.

Isak: Requirements so far: FDA establishment registration (\$13,000/yr), device listing (free), labeling (manufacturer name, address, model, adequate directions for use or Rx-only). The labeling is really where we have to worry about what we’re listing it as.

Isak: I’ll do some more reading and send a transcript and links.